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Case Number: 25SMCV04847 Hearing Date: June 24, 2026 Dept: N

TENTATIVE RULING

Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon's Demurrer and Motion to Strike are OVERRULED and DENIED, respectively.

Defendant Michael Boyd shall file and serve an answer to the First Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)

Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon, to give notice.

REASONING

Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon ("Defendant") demurs to and moves to strike portions of Plaintiff Fernando Saenz ("Plaintiff")'s complaint. As an initial matter, the Court notes that Defendant failed to file a meet-and-confer declaration with the motions as required by Code of Civil Procedure section 430.41, subdivision (a)(3), and section 435.5, subdivision (a)(3). Nonetheless, in the interest of judicial efficiency, the Court exercises its discretion to consider the merits of Defendant's demurrer and motion to strike, but it notes that subsequent failures to comply with statutory obligations may result in a continuance of the hearing on the subject motion.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967), but the Court does not "assume the truth of contentions, deductions, or conclusions of fact or law" (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125).

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must

appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Analysis

Plaintiff's complaint alleges a cause of action for general negligence and a cause of action for negligent hiring, training, and supervision, with a prayer for compensatory damages. Defendant demurs to claims that are not in the complaint and moves to strike prayers for relief that were not sought in the complaint. The Court is concerned about Defendant's choice to demur to claims such as a quiet title and accounting, which have no relationship whatsoever to the claims alleged, as this suggests that Defendant submitted a form motion to the Court without any reflection as to whether the motion was properly presented to the Court.

As to the demurrer, it appears Defendant simply demurs to the negligence claim on the ground that there is no duty, and the economic loss rule bars recovery. To state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) Under the economic loss rule, a party may not recover for "purely economic losses, i.e., those not accompanied by either property damage or physical injuries." (*Greystone Homes, Inc. v. Midtec, Inc.* (2008) 168 Cal.App.4th 1194, 1210.) It is clear that Plaintiff has alleged physical injury in the complaint. (Compl., p. 4.) Moreover, Defendant provides no argument that a duty does not exist, and the complaint alleges that Defendant owns and operates the establishment at which he suffered the injuries. Thus, Defendant's demurrer is **OVERRULED**.

As to the motion to strike, none of the bases for the motion to strike apply, as Plaintiff has not alleged anything sought to be stricken by Defendant. Defendant's motion to strike is, therefore, **DENIED**.

Finally, as to Defendant's nonappearance, the Court allows for remote appearances, and Defendant is advised to become familiar with CourtConnect if proper.

Accordingly, Defendant Margarita Sanchez, individually and doing business as Margarita's Beauty Salon's Demurrer and Motion to Strike are **OVERRULED** and **DENIED**, respectively. Defendant Michael Boyd shall file and serve an answer to the First Amended Complaint within ten (10) days of entry of this order. (Cal. Rules of Court, rule 3.1320(j).)